Moving Defendant submits a copy of the California Motor Vehicle Lease Agreement apparently signed by Plaintiff on or about 11/5/25. (Leung Decl., ¶ 2, Exh. 1.) The document contains the following broad arbitration provision:

> "**Any claim or dispute, whether in contract, tort or otherwise** (including any dispute over the interpretation, scope or validity of this lease, arbitration section or the arbitrability of any issue), **between you and us** or any of our employees, agents, successors, assigns, **or the vehicle distributor, <u>including Mercedes-Benz USA LLC</u>** (each a 'Third Party Beneficiary'), **which arises out of or relates to** a credit application, **this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall**, at the election of either you, us, or a Third Party Beneficiary, **be resolved by a neutral, binding arbitration** and not by a court action."

(Leung Decl., Exh. 1, p. 4, emphasis supplied.)

Third-Party Beneficiary

Plaintiff does not contest the validity or authenticity of this agreement. Plaintiff's primary challenge is that Moving Defendant lacks standing to enforce the agreement as a third-party beneficiary.

"Under certain circumstances, a nonsignatory to an arbitration agreement may seek to enforce it against a signatory. Whether such enforcement is permissible is a question of state law." (*Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324, 1332 [citing *Kramer v. Toyota Motor Corp.* (9th Cir. 2013) 705 F.3d 1122, 1128; *Thomas v. Westlake* (2012) 204 Cal.App.4th 605, 614, fn. 7].) State law provides six theories by which a nonsignatory may compel or be bound to arbitrate. These theories include: "'(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary' [citations]." (*Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513.)